



TrustFlight

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Executive Summary

On May 28, 2027, every Part 135 operator in the United States must have a fully implemented Safety Management System compliant with 14 CFR Part 5 and must submit a Declaration of Compliance to the FAA.

That deadline is now roughly thirteen months away.

For many operators, the instinct is to solve this problem the fastest way possible: purchase software, download a template, populate the fields, and move on. The FAA has been explicit that this approach will not work.

Advisory Circular 120-92D, published alongside the final rule in May 2024, makes clear that operators cannot buy a generic software package or adopt an off-the-shelf manual and consider themselves compliant. Part 5 is a performance-based regulation. It describes what must be achieved, not how. That means every operator's SMS must be tailored to its own operational environment, risk profile, fleet, route structure, and people.

This matters because the consequences of getting it wrong are not abstract. Operating without a compliant SMS after the deadline is a regulatory violation that puts your operating certificate at risk. And the FAA will not simply check whether you filed the paperwork. Inspectors will evaluate whether your system is actually functioning: whether your people understand it, whether your leadership is engaged, and whether your risk management processes are producing real outcomes.

Who is this document for?

This white paper is written for Part 135 operators with five or more aircraft, the mid-market and enterprise operators whose operational complexity makes SMS implementation both more challenging and more valuable. It examines what Part 5 actually requires, why off-the-shelf solutions fall short, what a decade of global SMS implementation has revealed, and how to build an SMS that satisfies the regulator and genuinely improves your operation.

THE REGULATORY LANDSCAPE

What Part 5 Actually Requires

The FAA published its final rule expanding 14 CFR Part 5 on April 26, 2024. The rule took effect on May 28, 2024, extending the SMS mandate, previously applicable only to Part 121 carriers, to all Part 135 commuter and on-demand operators, Part 91.147 commercial air tour operators, and certain Part 21 design and manufacturing organizations.

The compliance timeline is structured around two milestones. Operators were required to submit an implementation plan to the FAA by November 28, 2024. Full SMS implementation and a Declaration of Compliance must be submitted by May 28, 2027. The FAA originally proposed a 24-month compliance window but extended it to 36 months in response to industry feedback about the burden on smaller operators.

The Four Components

Part 5 is organized around four integrated components, each codified as a separate subpart:

- **Safety Policy (Subpart B)** establishes the foundation. The operator must document a safety policy signed by the accountable executive, define accountability structures, and establish a confidential employee reporting system where personnel can report hazards without concern of reprisal. The accountable executive must be the final authority over operations and must retain ultimate responsibility for safety performance. This is not a title. It is a regulatory obligation with personal accountability.
- **Safety Risk Management (Subpart C)** is the analytical core. Operators must implement a systematic process for identifying hazards, analyzing the likelihood and severity of associated risks, and designing controls when risk is unacceptable. SRM must be applied to planned operational changes, identified hazards, and any event that exceeds acceptable safety risk. This is proactive and prospective work, not reactive incident investigation.
- **Safety Assurance (Subpart D)** requires continuous monitoring and measurement of safety performance through audits, investigations, employee reporting data, and trend analysis. The organization must assess whether performance meets its stated safety objectives and demonstrate continuous improvement through corrective and preventive actions.
- **Safety Promotion (Subpart E)** addresses the human dimension. Operators must provide training to ensure personnel attain and maintain the competencies necessary for their SMS-related duties, and must develop means for communicating safety information throughout the organization. The FAA defines competency as observable and measurable actions, not simply attendance at a training session.

The Declaration of Compliance

The Declaration of Compliance is the culmination of the SMS development process, not its starting point.

Operators must have a fully functional, compliant system before submitting. Once submitted, FAA oversight begins immediately. Inspectors will add SMS-specific surveillance questions to the operator's oversight tools and will verify that documented processes match actual daily operations.

The regulatory environment is also intensifying. In February 2026, the Senate Commerce Committee passed the FAA SMS Compliance Review Act, directing the FAA to establish an independent expert review panel for agency-wide SMS. This signals that Congressional scrutiny of SMS implementation is increasing, not decreasing.

What a Decade of Global SMS Has Taught Us

Part 135 operators are not the first to face an SMS mandate. Part 121 airlines in the US have been operating under Part 5 since 2018.

Internationally, aviation authorities in Europe, Canada, and Australia have mandated SMS across their industries for years. Their experience offers critical lessons.

Transport Canada: Ten Years of Data

Canada was the first major aviation authority to mandate SMS and conducted a comprehensive evaluation in 2017-2018, covering more than a decade of implementation. The findings are the richest dataset available on what works, what fails, and what surprises operators along the way.

The clearest success was non-punitive reporting. Among all the SMS elements evaluated, confidential reporting culture produced the most measurable improvement. Organizations that built genuine trust in their reporting systems, where employees felt safe discussing problems without fear of reprisal, consistently outperformed those that treated reporting as a compliance checkbox.

Small operators struggled disproportionately. Only 53% of small organizations rated SMS as important, compared to 84% of medium and large operators. Documentation burden was the most frequently cited challenge, with 41% of small organizations identifying it as a barrier. Fifty-nine percent of organizations relied on manual processes and spreadsheets for data management. And critically, some organizations inappropriately assigned low-risk ratings to incidents to avoid resource-intensive investigations, directly corrupting the Safety Risk Management process.

Implementation guidance mattered enormously. Transport Canada significantly underestimated the personnel and oversight resources needed to support industry implementation. Guidance was described as “unclear and non-specific,” and operators turned to external consultants and industry associations far more often than they used the regulator’s own documentation. Different regional inspector interpretations created inconsistent compliance standards and ongoing industry frustration.

The bottom line: Organizations that invested in genuine safety culture saw real results. Those that treated SMS as a paperwork exercise achieved compliance on paper but failed to improve safety outcomes.

What Auditors Are Finding

The European Union Aviation Safety Agency has progressively extended SMS requirements across its industry, most recently to Part 145 maintenance organizations and Part 21 design and production organizations.

Recent EASA inspections have produced findings directly relevant to US operators:

- Compliant SMS was associated with a 20% reduction in incident rates. One organization achieved a 30% reduction in runway incursions.
- Effective management of change produced measurable results: one organization saw a 100% decrease in ground handling damage incidents while traffic increased.
- However, auditors consistently found a disconnect between compliance monitoring and SMS, where findings from compliance audits rarely made it to SMS hazard registers, and safety issues seldom triggered compliance reviews.
- Risk assessment frameworks that used generic definitions without customization caused confusion and undermined the process.

What Part 121 Airlines Demonstrated

Airlines with voluntary reporting programs such as ASAP (Aviation Safety Action Program) receive ten to thirty times more safety reports per employee than those without such programs.

FOQA (Flight Operational Quality Assurance) programs analyze hundreds of flight parameters, generating the data foundation that makes predictive safety management possible.

The lesson is consistent across every jurisdiction: SMS works when it is built on genuine safety culture, active leadership engagement, and operational integration. It fails when treated as a documentation exercise or a software deployment.

THE TRUSTFLIGHT APPROACH

Integrated Consulting, Training, and Technology for Part 5 SMS

TrustFlight is the Aerospace Safety Intelligence Platform, integrating safety technology, specialist training and consulting, and operational expertise into a single connected capability.

For Part 135 operators facing the Part 5 SMS mandate, TrustFlight delivers what the regulation actually demands: demonstrated competence, leadership engagement, active safety culture, and purpose-built technology, from one partner.

Why Integration Matters

The market today offers two categories of SMS solution: software vendors who sell platforms and may bolt on some generic training, and consulting firms who build documentation and recommend third-party technology. Neither approach delivers what Part 5 requires on its own.

Software platforms provide infrastructure but cannot build the safety culture that makes people report, train leadership on their personal regulatory obligations, or design risk management processes tailored to your operation. Consulting firms can write your manuals and coach your team but cannot give you the technology to operationalize SMS at scale across multiple bases.

TrustFlight is the only provider in the market that brings both together, not as two vendors stitched into a partnership, but as integrated capabilities within a single platform designed from the ground up to deliver exactly what regulators expect.

The Understand, Build, PowerUp Methodology

TrustFlight's Part 135 SMS Programme follows a proven three-phase methodology mapped directly to the four Part 5 components:

Understand delivers a comprehensive FAA Part 5 gap analysis, safety culture baseline assessment, and tailored implementation roadmap. For multi-base operators, this includes cross-base consistency evaluation, departmental integration assessment, and reporting culture maturity analysis. The output is a clear matrix showing what Part 5 requires, where the operator stands today, and exactly what needs to happen to close the gaps.

Build delivers the SMS documentation suite, risk management framework, safety assurance program, and Centrik 5 deployment, all configured around the operator's specific fleet, route structure, base locations, and risk profile. Documentation is not templated. It is designed to reflect how the operation actually functions, which is precisely what FAA inspectors will verify.

PowerUp delivers the human side of SMS: leadership and practitioner training, safety culture activation, and ongoing health checks that ensure the system is not just built but living. This phase ensures the accountable executive and senior leadership understand and fulfil their personal regulatory obligations, that safety managers and investigators have demonstrated competence in SMS processes, and that frontline personnel are actively engaged in reporting and risk management.





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TrustFlight

TrustFlight is the Aerospace Safety Intelligence Platform, integrating safety and security technology, training and consulting, and crisis management and response into a single connected ecosystem.

Serving more than 1,600 organisations in 120 countries, TrustFlight delivers operational intelligence and the expertise to act on it. The platform combines SaaS workflow automation, AI-driven regulatory intelligence, and 24/7 crisis response to support airports, operators, MROs, OEMs, and regulators. TrustFlight helps aviation organisations close critical gaps between disconnected tools and providers, where risk can accumulate. To learn more, please visit www.trustflight.com.

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